

**FEDERAL MARITIME COMMISSION
WASHINGTON, D.C**

WAY 2 GO CARGO CORP.;

DOCKET NO.: 25-14

Complainant

v.

OAK WAY CARGO, LLC,

Respondent.

**RESPONDENT'S MOTION TO COMPEL DISCOVERY, COMPEL THE
CONTINUED DEPOSITION OF THE CORPORATE REPRESENTATIVE OF WAY
2 GO CARGO CORP. AND EXTEND CASE DEADLINES**

Respondent, OAK WAY CARGO, LLC ("Respondent" or "Oak Way"), by and through the undersigned counsel and pursuant to 46 C.F.R. §§ 502.141(k) and 502.150(a) and Federal Rule of Civil Procedure 37, hereby moves for an order compelling Complainant, Way 2 Go Cargo Corp. ("Complainant" or "Way 2 Go Cargo"), to complete its production of documents responsive to Oak Way's First Request for Production to Complainant, provide better answers to Oak Way's First Set of Interrogatories to Complainant, compel the supplemental deposition of Way 2 Go Cargo's corporate representative, and to extend case deadlines, and states:

1. On December 12, 2025, Oak Way served its First Request for Production on Way 2 Go Cargo. A true and correct copy of Oak Way's First Request for Production is attached hereto as Exhibit A.

2. On January 2, 2026, Oak Way served its First Set of Interrogatories on Way 2 Go Cargo. A true and correct copy of Oak Way's First Set of Interrogatories is attached hereto as Exhibit B.
3. On January 12, 2026, Way 2 Go Cargo Served its initial Response to Oak Way's First Request for Production.
4. On January 28, 2026, Way 2 Go Cargo Served its Amended Response to Oak Way's First Request for Production. A true and correct copy of Way 2 Go Cargo's Amended Response to Oak Way's First Request for Production is attached hereto as Exhibit C.
5. Way 2 Go Cargo's Amended Responses included the following responses that are of particular relevance to this motion:

4. All Documents demonstrating the harm You claim to have suffered due to Oak Way USA purportedly violating 46 U.S.C. § 40901(a).

RESPONSE: Complainant will produce all non-privileged documents in Complainant's possession, custody, or control, which can be located after a reasonable and diligent search.

5. All Documents showing that Oak Way USA's conduct has caused significant and irreparable harm to Way2Go, including lost customers, lost revenue, interference with commercial relationships, reputational damage, regulatory exposure, and the loss of business opportunities.

RESPONSE: Complainant objects to this Request it is cumulative and duplicative of Request No. 4. Complainant's response to this Request is contained in the response to Request No. 4.

...

8. All Documents showing the efforts that you took after April 18, 2025, to release Way2Go's shipments from the port.

RESPONSE: With the agreed understanding that "the port" is a general reference to any port that Way2Go has shipments in. Complainant will produce all non-privileged documents in Complainant's possession, custody, or control, which can be located after a reasonable and diligent search.

...

27. All Documents showing that You have been harmed due to competitive distortion.

RESPONSE: Complainant objects to this Request it is cumulative and duplicative of Request No. 4. Complainant's response to this Request is contained in the response to Request No. 4.

See Exhibit C.

6. On February 2, 2026, Way 2 Go Cargo Served its Answers to Oak Way's First Set of Interrogatories. A true and correct copy of Way 2 Go Cargo's Answers to Interrogatories is attached hereto as Exhibit D.
7. Way 2 Go Cargo's Answers to Interrogatories included the following answers that are of particular relevance to this motion:

1. Identify each category of damages You claim to have suffered as a result of Oak Way Cargo, LLC's alleged violation of 46 U.S.C. § 40901(a).

ANSWER: Defendant objects to this request to the extent that it infers that Complainant has a burden to prove damages for Oak Way's violations of the Shipping Act. Notwithstanding and without waiving the foregoing objection, as a result of Oak Way's violations, Way2Go has suffered damages including reputational harm, diversion of funds, and lost profits.

2. For each category of damages identified in Interrogatory No. 1, state the total amount of damages claimed and describe in detail how that amount was calculated.

ANSWER: Way2Go is in the process of investigating the full scope of harm that has resulted from Oak Way's violation of the Shipping Act. Oak Way has failed to comply with its obligations to adequately respond to Complainant's discovery requests, resulting in prejudice to the Complainant's ability to calculate the exact amount of damages. Moreover, the information sought is reflected in the documents produced in this proceeding which are incorporated herein by reference.

3. Identify all documents, data, or financial records that support each damages calculation identified in response to Interrogatory No. 2.

ANSWER: Way2Go is in the process of investigating the full scope of harm that has resulted from Oak Way's violation of the Shipping Act as Respondent has yet to produce any documents sought in Complainant's First Request for Production served on November 26, 2025. At this time, the communications, invoices, and shipping documents that Oak Way issued to Way2Go customers for shipments that belong to Way2Go will be among the documents used to evidence Way2Go's monetary damages.

...

7. Identify all customers that You contend were lost as a result of Oak Way Cargo, LLC's alleged violation of 46 U.S.C. § 40901(a), and for each customer state the factual basis for Your contention.

ANSWER: Way2Go is in the process of investigating the full scope of harm that has resulted from Oak Way's violation of the Shipping Act as Respondent has yet to produce any documents sought in Complainant's First Request for Production served on November 26, 2025. At this time, Way2Go is aware that the list of customers lost as a result of Oak Way Cargo, LLC's violations, includes, but is not limited to, the following: Best Stone Imports, Maia Stone Company, LLC, and TM Nature Stone and Quartz.

8. For each customer identified in Interrogatory No. 7, state the amount of revenue You contend was lost and explain how that amount was calculated.

ANSWER: Way2Go is in the process of investigating the full scope of harm that has resulted from Oak Way's violation of the Shipping Act as Respondent has yet to produce any documents sought in Complainant's First Request for Production served on November 26, 2025. As a result of this undue delay, Way2Go has not been able to determine the exact amount of revenue lost as a result of Oak Way Cargo, LLC's violations.

9. Identify all business opportunities You contend were lost as a result of Oak Way Cargo, LLC's alleged conduct, including a description of the factual basis for each claimed loss, the total dollar amount of damages You contend resulted from each claimed loss, and a description of how that amount was calculated.

ANSWER: Way2Go is in the process of investigating the full scope of harm that has resulted from Oak Way's violation of the Shipping Act as Respondent has yet to produce any documents sought in Complainant's First Request for Production served on November 26, 2025. As a result of this undue delay, Way2Go has not been able to determine the exact amount of lost opportunity damages suffered as a result of Oak Way Cargo, LLC's violations.

...

11. State the total dollar amount of damages You contend resulted from the alleged reputational harm and regulatory exposure caused by Oak Way Cargo, LLC, and describe in detail how that amount was calculated.

ANSWER: Way2Go is in the process of investigating the full scope of harm that has resulted from Oak Way's violation of the Shipping Act as Respondent has yet to produce any documents sought in Complainant's First Request for Production served on November 26, 2025. As a result of this undue delay, Way2Go has not been able to determine the exact amount of lost reputation damages suffered as a result of Oak Way Cargo, LLC's violations.

12. Identify all third parties who allegedly altered, ceased, or limited their business relationship with Way2Go due to Oak Way Cargo, LLC's alleged conduct.

ANSWER: Complainant objects to this request as being duplicative and cumulative of Interrogatory No. 7; Complainant's answer to Interrogatory No. 7 is incorporated herein.

. . .

20. State the total dollar amount of damages You contend resulted from the alleged competitive distortion caused by Oak Way Cargo, LLC, and describe in detail how that amount was calculated.

ANSWER: Complainant objects to this request as being duplicative and cumulative of the information sought in Interrogatory Nos. 1, 2, and 3; Complainant's response to Interrogatory Nos. 1, 2, and 3 are incorporated herein.

See Exhibit D.

8. On May 28, 2026, the undersigned took the deposition of Elisa Delphino, who appeared as the Corporate Representative of Way 2 Go Cargo. A true and correct copy of the Notice of Deposition of the Corporate Representative of Way 2 Go Cargo and the email by which the undersigned served said notice of deposition are attached hereto as Composite Exhibit E.
9. The topics designated for discussion during the deposition of the Corporate Representative of Way 2 Go Cargo included Way 2 Go Cargo's discovery responses and Way 2 Go Cargo's claimed damages and causation, including the nature of the damages alleged and how they are purportedly connected to Oak Way Cargo LLC's conduct or its purported operating without a license. *See* Composite Exhibit E.
10. During the May 28 deposition, Ms. Delphino claimed that as part of Way 2 Go Cargo's efforts taken after April 28, 2025, to locate information for and release Way2Go's shipments from the port, she and other agents of Way 2 Go had

exchanged written communications with clients and third-party vendors, including the software provider known as ShipThis.

11. Additionally, when asked about Way 2 Go Cargo's damages, Ms. Delphino stated that Way 2 Go had not yet completed its damages analysis and calculations and therefore she was not prepared to provide full answers as to Way 2 Go Cargo's damages. However, Ms. Delphino represented that she expected Way 2 Go Cargo to finish its damages analysis within two weeks from that date.
12. Additionally, Ms. Delphino claimed that, following the issuance of an order by a judge in Brazil presiding over related litigation in that country, Way 2 Go Cargo had received login credentials by which it had gained access to various documents related to its claims, including its damages.
13. Immediately following the May 28 deposition, the undersigned met and conferred with Jennifer Roldan, counsel for Way 2 Go Cargo, via Zoom. During the conference, the undersigned and Ms. Roldan agreed that the parties would jointly seek an extension of about 21 days to all then remaining case deadlines. Among other reasons, the extension of time was sought to provide Way 2 Go Cargo additional time to: complete its production of documents responsive to Oak Way's Request for Production, including documents relating to Way 2 Go Cargo's damages and written communications exchanged as part of Way 2 Go Cargo's efforts to release shipments after April 18, 2025; provide Way 2 Go Cargo's complete damages information responsive to Oak Way's First Set of

Interrogatories; and schedule a follow up deposition at which Way 2 Go Cargo might produce a corporate representative prepared to answer questions about Way 2 Go Cargo's damages.

14. On May 29, 2026, the parties filed their Fourth Motion to Extend Scheduling Order Deadlines which sought to extend the parties' deadline to complete fact discovery to June 19, 2026, and extend all other remaining deadlines accordingly.
15. On June 1, 2026, this Commission granted the parties' request and re-set the remaining case deadlines as follows:

June 19, 2026	Complete Fact Discovery
June 26, 2026	Disclosure-Initial Expert Reports
July 3, 2026	Disclosure-Rebuttal Expert Reports
July 10, 2026	Complete Expert Depositions
July 10, 2026	Close of Discovery and Completion of Depositions (if any)
August 7, 2026	Complainant's Brief, Proposed Findings of Fact, and Appendix
September 4, 2026	Respondent's Opposition Brief, Response to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix
September 25, 2026	Complainant's Reply Brief and Responses to Proposed Findings of Fact

16. On June 12, 2026, following the conclusion of the continued deposition of the corporate representative of Oak Way, the undersigned again conferred with Ms. Roldan via Zoom about the need for Way 2 Go to supplement its document production and provide a completed damages information. During the June 12 conference, Ms. Roldan represented that she expected that Way 2 Go would

provide its supplemented production and damages information by the following Wednesday, June 17, 2026.

17. 46 CFR § 502.141(k) provides:

Supplementing responses. A party who has made a disclosure under paragraph (b) or (d) of this section, or who has responded to an interrogatory, request for production, or request for admission, must supplement or correct its disclosure or response:

(1) In a timely manner if the party learns that in some material respect the disclosure or response is incomplete or incorrect, and if the additional or corrective information has not otherwise been made known to the other parties during the discovery process or in written communication; or

(2) As ordered by the presiding officer.

18. As of the date of this filing and although Way 2 Go Cargo had acknowledged, knew, or had reason to know that its prior document production and answers to interrogatories were incomplete, Way 2 Go Cargo has failed to supplement and complete its production of all documents that it represented would be produced responsive to Oak Way's First Request for Production and Way 2 Go Cargo has failed to supplement and complete its disclosure of its damages information that is responsive to interrogatory numbers 1, 2, 3, 7, 8, 9, 11, 12, and 20 of Oak Way's First Set of Interrogatories.
19. Due to Way 2 Go Cargo's failure to fulfill its discovery obligations, counsel for Oak Way has been denied a meaningful opportunity to question a corporate representative of Way 2 Go Cargo about the damages it seeks in these proceedings.

20. Moreover, Way 2 Go Cargo's failure to fulfill its discovery obligations in a timely manner has prevented the completion of fact discovery by the June 19, 2026 deadline for the same.
21. Way 2 Go Cargo's failure to fulfill its discovery obligations in a timely manner has prejudiced Respondent's ability to prepare its defense. Oak Way has been denied the discovery necessary to determine whether an expert on damages will be necessary in this matter and to make adequate expert disclosures prior to the June 26, 2026 deadline for same. Oak Way has been denied a reasonable opportunity to question a corporate representative of Way 2 Go Cargo about the damages it seeks in these proceedings prior to the July 10, 2026 deadline for the completion of all depositions. Furthermore, Oak Way has been deprived of the opportunity to obtain any advance notice of the damages that Respondent seeks in this action prior to the completion of discovery and the August 7, 2026, deadline for the submission of Claimant's Initial Brief, Proposed Findings of Fact, and Appendix.
22. Accordingly, this Commission must compel Way 2 Go Cargo to, by July 8, 2026, complete its production of all documents that it indicated would be produced in its Amended Responses to Respondent's First Request for Production, including without limitation, all documents responsive to request numbers 4, 5, 8, and 27, and provide better and complete answers to interrogatory numbers 1, 2, 3, 7, 8, 9, 11, 12, and 20 of Respondent's First Set of Interrogatories.

23. Additionally, this Commission must compel Way 2 Go Cargo to make its corporate representative available for a supplemental deposition on or before August 6, 2026, and the deadline to complete discovery should be extended accordingly. This extension is necessary in part because due to the undersigned's pre-arranged vacation, travel, and other commitments over the coming weeks, he is unavailable to take a deposition of the corporate representative of Way 2 Go Cargo prior to July 22, 2026.
24. Moreover, this Commission must extend the remaining case deadlines as follows to allow for the completion of discovery sufficiently *before* the deadlines for expert disclosures and the submission of briefs on the merits.

August 6, 2026	Complete Fact Discovery
August 13, 2026	Disclosure-Initial Expert Reports
August 20, 2026	Disclosure-Rebuttal Expert Reports
August 27, 2026	Complete Expert Depositions
August 27, 2026	Close of Discovery and Completion of Depositions (if any)
September 24, 2026	Complainant's Brief, Proposed Findings of Fact, and Appendix
October 22, 2026	Respondent's Opposition Brief, Response to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix
November 12, 2026	Complainant's Reply Brief and Responses to Proposed Findings of Fact

25. This Motion is made in good faith and not for the purpose of delay or any other improper purpose. Rather, this motion is made to ensure that Way 2 Go Cargo's failure to fulfill its discovery obligations does not prejudice to Respondent's right to have a reasonable time to prepare its defense.

WHEREFORE, Respondent, Oak Way Cargo, LLC, respectfully requests that this Commission enter an order: 1) compelling Claimant, Way 2 Go Cargo Corp, to, by July 8, 2026, complete its production of all documents that it indicated would be produced in its Amended Responses to Respondent's First Request for Production, including without limitation all documents responsive to request numbers 4, 5, 8 therein, and provide better and complete answers to interrogatory numbers 1, 2, 3, 7, 8, 9, 11, 12, and 20 of Respondent's First Set of Interrogatories; 2) compelling Claimant, Way 2 Go Cargo Corp, to make its corporate representative available for a supplemental deposition on or before August 6, 2026; 3) extending the case deadlines as set forth in paragraph 24 above; and 4) granting such further relief this Commission deems appropriate.

Dated: June 23, 2026.

Respectfully submitted,

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Counsel for Respondent, Oak Way Cargo.

CERTIFICATE OF CONFERRAL

The undersigned certifies that, prior to filing this motion, counsel for Respondent, Oak Way Cargo, LLC, conferred with counsel for Claimant, Way 2 Go Cargo Corp. via Zoom conferences on May 28, 2026, and June 12, 2026, in order to obtain compliance without the necessity of a motion. Additionally, on June 23, 2026, the undersigned further conferred with Ms. Roldan via telephone to determine whether there is any opposition to the relief sought in this motion and, if there is opposition, to narrow the areas of disagreement. Ms. Roldan advised that Claimant does not oppose an order compelling it to provide better answers to Respondents First Set of Interrogatories but Claimant does oppose the other relief sought by this Motion.

By: /s/Ronald R. Hink
Ronald R. Hink

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed via e-mail upon the Office of the Secretary at secretary@fmc.gov with a copy to the presiding judge at judges@fmc.gov and served upon all counsel of record for Way 2 Go Cargo Corp., at sarah@epgdlaw.com and jennifer@epgdlaw.com on this 23rd day of June, 2026.

By: /s/Ronald R. Hink
Ronald R. Hink